

24CHCV02287 24CHCV02287

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-07-01

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Case Number: 24CHCV02287 Hearing Date: July 1, 2026 Dept: F47

Dept. F47

Date: 7/1/26

TRIAL DATE: 8/31/26

Case #24CHCV02287

MOTION TO

COMPEL CELL PHONE RECORDS

Motion filed on 2/23/26.

MOVING PARTY: Plaintiff Mario Wong

RESPONDING PARTY: Defendant Alex Anthony Quintana

RELIEF REQUESTED: An order compelling Defendant

Alex Anthony Quintana to produce an executed authorization required to obtain his subpoenaed cell phone records from Verizon.

Additionally, Plaintiff requests sanctions against Quintana and his counsel of record in the amount of \$4,092.00.

RULING: The motion is denied without prejudice.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of a motor vehicle collision that

occurred on 6/24/22 when Plaintiff Mario Wong (Plaintiff) was rear-ended by a vehicle driven by Defendant Alex Anthony Quintana (Quintana) who was driving a vehicle leased by his employer, Defendant Johnson Controls, Inc. (JCI).

On 6/24/24, Plaintiff filed this action asserting causes of action for motor vehicle and general negligence. On 10/8/24, JCI, Johnson Controls International, Inc. and Quintana answered the complaint. Trial is scheduled for 8/31/26.

After Quintana gave different versions of the circumstances leading up to the collision, in December 2025, Plaintiff's counsel requested that Quintana sign an authorization so that Plaintiff could obtain Quintana's cell phone records for 30 minutes before and after the collision. (Booker Decl., Ex.C). Defense counsel agreed to have Quintana sign the authorization. Id. As of 1/12/26, the signed authorization had not been received by Plaintiff's counsel. Id.

On 1/12/26, Plaintiff's counsel served a subpoena on Verizon seeking:

"1. Any and all documentation including notes, records, logs, data, reports, and electronically stored information, created, maintained, stored, or possessed by Cellco Partnership d/b/a Verizon Wireless, relating to any and all cellular telephone activity by Alex Anthony Quintana on June 24, 2022, for the time period of 9:55 p.m. through 10:55 p.m.

2. Any and all documentation including incoming and outgoing call records, reflecting the date, time, duration, and associated telephone numbers, relating to cellular telephone activity during the above-referenced time period in connection with the following telephone numbers: 714-713-6383 (work cellular telephone through Johnson Controls) and 626-476-8326 (personal cellular telephone).

3. Any and all documentation including text message transmission logs, reflecting the date, time, and associated telephone numbers, relating to any text messages sent or received during the above-referenced time period.

4. Any and all documentation

including internet usage, email activity, music or media application usage, and other data or application-related activity records, reflecting timestamps of activity or usage during the above-referenced time period.

5. The documents requested herein

relate to a motor vehicle collision that occurred on June 24, 2022, at approximately 10:25 p.m., at or near Interstate 210 westbound, approximately 600 feet west of Van Nuys Boulevard, Los Angeles, California. 6. The documents requested herein are limited to the 30 minutes immediately prior to and 30 minutes immediately following the subject incident.

(Id., Ex.D).

Plaintiff contends that no records have been received from Verizon because Quintana has not provided a signed authorization. (Booker Decl. ¶15).

On 2/23/26, Plaintiff filed and served the instant motion seeking an order compelling Quintana to produce an executed authorization required to obtain his subpoenaed cell phone records from Verizon. Additionally, Plaintiff requests sanctions against Quintana and his counsel of record in the amount of \$4,092.00. Quintana has not responded to the motion.

ANALYSIS

The motion fails for both procedural and substantive reasons.

Procedurally, there are issues with the service of the motion. Although the meet and confer emails were sent to Defendants' local counsel and Defendants' counsel admitted pro hac vice, the proof of service for the motion only shows service on Defendants' pro hac vice counsel.

There is no proof that the motion was served on Defendants' local counsel. As noted above, Quintana has not responded to the motion to cure any defect in notice.

Even if the motion is considered to have been properly served, it fails. First, Plaintiff does not provide any evidence (e.g. a response to the subpoena from Verizon) showing

that Verizon refused to comply with the subpoena and/or why Verizon refused.

Instead, Plaintiff's counsel merely concludes that "[b]ecause Defendant refuses to provide the requisite signed authorization, records have not been received from Verizon." (Booker Decl.

¶15). Additionally, the motion does not set forth authority for an order compelling Quintana to sign the authorization. Rather, Plaintiff cites authority regarding a deponent's obligation to produce documents and a party's obligation to respond to document requests.

Here, Quintana is not the deponent in the deposition subpoena for business records and there is no evidence that Plaintiff has served a document request on Quintana for the cell phone records.

(See Booker Decl., Ex.D). Next,

Plaintiff argues that since Quintana did not object to the subpoena or file a motion to quash, he is precluded from challenging the subpoena. While this may be true, Plaintiff has not filed a motion to compel the deponent's (Verizon) compliance with the deposition subpoena and Quintana has not opposed such a motion.

CONCLUSION

The motion is denied without prejudice.